

1 ENGROSSED SENATE
2 BILL NO. 1255

By: Jech of the Senate

3 and

4 Newton of the House

5
6 An Act relating to pardons and paroles; amending 57
7 O.S. 2021, Section 332.18, which relates to placement
8 on the Pardon and Parole Board docket for medical
9 reason; giving medical director of the Department of
10 Corrections certain authority; updating statutory
11 language and reference; and providing an effective
12 date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 57 O.S. 2021, Section 332.18, is
15 amended to read as follows:

16 Section 332.18. A. ~~The Director of the Department of~~
17 ~~Corrections~~ medical director of the Department of Corrections shall
18 have the authority to request the Executive Director of the Pardon
19 and Parole Board to place an inmate on the Pardon and Parole Board
20 docket for a medical reason, out of the normal processing
21 procedures. Documentation of the medical condition of such inmate
22 shall be certified by the medical director of the Department of
23 Corrections. The Pardon and Parole Board shall have the authority
24 to bring any such inmate before the Board at any time, except as
otherwise provided in subsection B of this section.

1 B. When a request is made for a medical parole review of an
2 inmate who is dying or is near death or is medically frail or is
3 medically vulnerable as defined in subsection F of this section as
4 certified by the medical director of the Department of Corrections
5 or whose medical condition has rendered the inmate no longer an
6 unreasonable threat to public safety, the Executive Director shall
7 place such inmate on the first available parole review docket for a
8 compassionate parole consideration. Inmates who meet the criteria
9 set out in this section are not subject to the two-stage hearing
10 process in subsection D of Section 332.7 of this title.

11 C. No person shall be eligible for consideration for medical
12 parole without the concurrence of at least three members of the
13 Pardon and Parole Board. The vote on whether or not to consider
14 such person for parole and the names of the concurring Board members
15 shall be set forth in the written minutes of the meeting of the
16 Board at which the issue is considered.

17 D. In the event that it is determined that the continuation of
18 the medical parole presents an increased risk to the public, the
19 parolee shall be subject to parole revocation. In such case, the
20 Department of Corrections shall follow the revocation procedure for
21 violators of parole set forth in Section 516 of this title.

22 E. The provisions of this section shall not apply to inmates
23 serving a sentence of life without possibility of parole.

24 F. As used in this section:

1 1. "Medically frail" means an individual with a medical
2 condition which precludes the individual from performing two or more
3 activities of daily living on ~~their~~ his or her own;

4 2. "Medically vulnerable" means an individual with one or more
5 medical conditions which ~~makes~~ make the individual more likely to
6 contract an illness or disease while incarcerated that could lead to
7 death or cause an individual to become medically frail. The
8 provisions of this ~~subsection~~ paragraph shall only apply during a
9 catastrophic health emergency as declared by the Governor of this
10 state pursuant to the provisions of Section 6403 of Title 63 of the
11 Oklahoma Statutes;

12 3. "Medical condition" includes, but is not limited to,
13 debilitating health conditions occurring as a result of the
14 following:

- 15 a. disabling mental disorders including dementia,
16 Alzheimer's disease, or similar degenerative brain
17 disorders,
- 18 b. ~~Human Immunodeficiency Virus~~ human immunodeficiency
19 virus (HIV) or ~~Acquired Immune Deficiency Syndrome~~
20 acquired immunodeficiency syndrome (AIDS),
- 21 c. cancer,
- 22 d. cardiovascular disease,
- 23 e. chronic lung disease or asthma,
- 24 f. diabetes,

- g. hepatitis C,
- h. seizure disorders,
- i. inmates receiving ~~life-sustaining~~ life-sustaining care such as feeding tubes or colostomy bags,
- j. disabling neurological disorders such as multiple sclerosis (MS) or amyotrophic lateral sclerosis (ALS), or
- k. any other condition related to a weakened immune system or condition that requires or is expected to require specialty care or recurrent hospitalizations;

4. "Activities of daily living" means basic personal care and everyday activities including tasks such as eating, toileting, grooming, dressing, bathing, and transferring from one physical position to another including moving from a reclining position to a sitting or standing position, that a person cannot perform on his or her own; and

5. "Dying" or "near death" means an individual with a medical condition ~~and~~ who has an estimated life expectancy of six (6) months or less.

G. Victim notification shall be provided ~~as provided in~~ pursuant to Section 332.2 of this title and as required by Article 2 II, Section 34 of the Oklahoma Constitution.

SECTION 2. This act shall become effective November 1, 2026.

1 Passed the Senate the 25th day of March, 2026.

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4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives